

The Commonwealth of Massachusetts

INITIATIVE PETITION OF NORMA B. SHULMAN AND OTHERS.

OFFICE OF THE SECRETARY.

BOSTON, January 7, 2026.

Timothy Carroll
Clerk of the House of Representatives
State House
Boston, Massachusetts 02133

Sir: — I herewith transmit to you, in accordance with the requirements of Article XLVIII of the Amendments to the Constitution “An Initiative Petition for a Law Relative to Election Day Registration,” signed by ten qualified voters and filed with this department on or before December 3, 2025, together with additional signatures of qualified voters in the number of 87,408, being a sufficient number to comply with the provisions of said Article.

Sincerely,

WILLIAM FRANCIS GALVIN
Secretary of the Commonwealth.

AN INITIATIVE PETITION.

Pursuant to Article XLVIII of the Amendments to the Constitution of the Commonwealth, as amended, the undersigned qualified voters of the Commonwealth, ten in number at least, hereby petition for the enactment into law of the following measure:

HOUSE No. 5001

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to election day registration.

Be it enacted by the People, and by their authority, as follows:

1 SECTION 1. Section 1 of chapter 51 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the last sentence and inserting in place
3 thereof the following sentence:- A person otherwise qualified to vote for national or state
4 officers, but who has not registered in accordance with the provisions of section 26 of this
5 chapter shall be eligible to register under section 34A.

6 SECTION 2. Section 1F of chapter 51 of the General Laws is hereby repealed.

7 SECTION 3. Said chapter 51, as so appearing, is hereby amended, by striking out section
8 3, as so appearing, and inserting in place thereof the following section:

9 Section 3. For all elections and primaries, a person shall be registered and may vote in the
10 voting precinct where they reside; provided, however, that any registered voter of a city or town
11 who moves to any other precinct in said city or town or to another city or town may register to
12 vote at their new address by making written application to the city or town clerk no later than the
13 close of registration or in accordance with the provisions of section 34A of this chapter. A new

resident of the city or town may also, upon like application, be registered at the new address by making written application to the city or town clerk no later than the close of registration or in accordance with the provisions of section 34A. The city or town clerk shall forthwith notify each voter making any such written application that the same has been received and that they may vote, subject to the provision of this section regarding the close of registration, in the precinct into which they have moved or in accordance with provisions of section 34A.

SECTION 4. Section 26 of said chapter 51, as so appearing, is hereby amended by striking the last sentence.

SECTION 5. Said chapter 51 is hereby further amended by striking out section 34, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:—

Section 34. Except as otherwise provided in section 34A, after 5:00 p.m. of a day on which registration is to cease, the registrars shall not register any person to vote in the next election, except that they shall furnish, or cause to be furnished, to each person waiting in line at the hour of 5:00 pm for the purpose of being registered, a card or slip of identification bearing such person's name and shall, before registration ceases, permit such person to register.

SECTION 6. Said chapter 51 is hereby further amended by inserting after section 34 the following section: —

Section 34A. (a) An individual who is eligible to vote may register on the day of an election by appearing in person at the appropriate polling place for the precinct in which they reside, during the hours in which polls are open for voting, by completing a registration application in a form prescribed by the state secretary, by presenting to the appropriate election official proof of residency and by making a written oath which shall be as follows: I certify that

36 I: am a citizen of the United States; am at least 18 years old; am not under guardianship that
37 prohibits me from registering and/or voting or otherwise prohibited from voting; am not
38 temporarily or permanently disqualified by law because of corrupt practices in respect to
39 elections; have not and will not vote in this election in any other location within the
40 Commonwealth or elsewhere; have read and understand this statement. I further understand that
41 giving false information is a felony punishable by not more than 5 years imprisonment or a fine
42 of not more than \$10,000, or both.

43 (b) For purposes of this section, the term “proof of residence” shall mean one of the following,
44 so long as it includes the name of the applicant and the address from which they are registering:

45 (i) a valid photo identification including, but not limited to, a Massachusetts driver’s license or
46 other state-issued identification card; or

47 (ii) other documentation demonstrating the name and address where the applicant maintains
48 residence and seeks to register including, but not limited to, a copy of a current utility bill, bank
49 statement, government check, residential lease agreement, wireless telephone statement,
50 paycheck, other government document or correspondence, a current student fee statement or
51 other document from a post-secondary educational institution that verifies the student’s current
52 address.

53 (c) Upon meeting the identity requirements of subsection (a), production of proof of residence,
54 and the making of an oath sufficient to support registration, the ballot clerk or their designee
55 shall permit the applicant to vote in that election. Any person who registers to vote on the day of
56 an election in accordance with this section shall, absent disqualification, be registered to vote at
57 all subsequent primaries and elections.

(d) A registrant who fails to present suitable identification shall be permitted to cast a provisional ballot pursuant to the provisions of section 76C of chapter 54, but shall be required to return before the close of polls on a municipal election, within two business days after a state primary or within six days following a state election to present sufficient identification to the local election officials in order for the local election officials to determine that the registrant is qualified to vote in such election and whether to count the provisional ballot.

(e) Not less than seven days prior to any election, the registrars for each city or town shall publish all polling locations and the applicable dates and hours. Notice shall be conspicuously posted in the office of the local election officials or on the principal official bulletin board of each city or town, on any other public building considered necessary, on the city or town's website, if any, and on the website of the state secretary.

(f) The state secretary shall make available to the election officers at each polling location, to the extent possible, access to the statewide list of registered voters as contained in the central registry of voters set forth in section 47C.

(g) The local election officials may correct information supplied by the registrant to the extent necessary to maintain the integrity of their records. If an affidavit is incomplete or if it appears from the facts set forth in the affidavit that the registrant is not qualified to register as a voter, the local election officials shall proceed in accordance with the provisions of section forty-seven.

(h) As soon as practicable after the election, but not more than thirty days after the election, the registrars shall add the registrant's name, address and effective date of registration to the annual register of voters.

(i) This section shall not apply to an individual seeking to register to vote in any town for the purposes of voting at annual town meeting or special town meeting.

(j) A voter shall not change party enrollment at a primary under this section.

(k) The state secretary shall adopt regulations to implement the relevant provisions of this chapter.

(l) Upon credible information or allegation of illegal voter registration, or credible information or allegation of illegal multiple voting, there shall be an investigation upon the merits of said information or allegation by the attorney general, or by the district attorney having jurisdiction over the municipality in which the alleged illegal registration or illegal multiple voting occurred. Nothing in this subsection shall be construed as excluding enforcement of this section by any means otherwise provided by law.

(m) Violations of this section shall be punishable under sections 8, 26 and 27, of chapter 56.

SECTION 7. This act shall take effect on January 1, 2028.

FIRST TEN SIGNERS

<u>NAME</u>	<u>RESIDENCE</u>	<u>CITY OR TOWN</u>
Norma B. Shulman	13 Alfred Road	Framingham
William Francis Galvin	46 Lake Street	Boston
Stephanie A. Deeley	10 Yorks Road	Framingham
Lisa Ferguson	770 Samuel Drive	Northbridge
Barbara J. Fonte	21 Joseph Road	Framingham
Jeanne Irene Bullock	22 Pinewood Drive	Framingham
Nancy Beth Stoodt	615 Belknap Road	Framingham
Larry E. Stoodt	615 Belknap Road	Framingham
Maria C. Curtatone	37 Munroe Street	Somerville
Peter James Adams	7 Jolicoeur Road	Spencer

CERTIFICATE OF THE ATTORNEY GENERAL.

September 3, 2025.

Honorable William Francis Galvin
Secretary of the Commonwealth
One Ashburton Place, Room 1705
Boston, Massachusetts 02108

Re: Initiative Petition No. 25-08: Initiative Petition for a Law Relative to
Election Day Registration

Dear Secretary Galvin:

In accordance with the provisions of Article 48 of the Amendments to the Massachusetts Constitution, I have reviewed the above-referenced initiative petition, which was submitted to me on or before the first Wednesday of August of this year.

I hereby certify that this measure is in proper form for submission to the people; that the measure is not, either affirmatively or negatively, substantially the same as any measure which has been qualified for submission or submitted to the people at either of the two preceding biennial state elections; and that it contains only subjects that are related or are mutually dependent and which are not excluded from the initiative process pursuant to Article 48, the Initiative, Part 2, Section 2.

In accordance with Article 48, I enclose a fair, concise summary of the measure.

Sincerely,

ANDREA JOY CAMPBELL,
Attorney General.

SUMMARY OF 25-08

This proposed law would permit eligible individuals to register to vote or update their voter registration address on Election Day.

An individual who is eligible to vote could register to vote on Election Day by going to the polling place in the precinct where they live during voting hours and presenting proof of residency and signing a written oath. Proof of residency could be a valid photo identification, or documentation showing the individual's name and the address where the individual resides, such as a current utility bill, bank statement, government check, residential lease, wireless telephone statement, paycheck, current student fee statement or other document from a post-secondary school, or another government document or correspondence. The written oath would require the individual to certify that they are a citizen of the United States, are at least 18 years old, are not legally prohibited from voting, and have not and will not vote in the same election at another location. The oath would require the individual to acknowledge that providing false information is a felony punishable by not more than 5 years imprisonment or a fine of not more than \$10,000, or both.

If an individual did not present proof of residency, they would be allowed to cast a provisional ballot, which would be counted only if the individual returned to provide the required information before the close of polls for a municipal election; within two days after a state primary; or within six days after a state election.

Individuals who register to vote on Election Day would be registered to vote in future elections as well as in the election taking place that day.

Individuals who are already registered to vote would not be able to change their political party affiliation on Election Day.

The proposed law would take effect on January 1, 2028.